BY ORDER OF THE
SECRETARY OF THE AIR FORCE

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ALCOHOLIC BEVERAGE PROGRAM

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

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This instruction outlines Air Force procedures to control, procure, sell, and use alcoholic beverages. It implements AFPD 34-2, Air Force Community Services Programs. It applies to all personnel who sell, serve, purchase, and consume alcohol on Air Force bases. It also applies to Air National Guard units and members when on Air Force bases. Major Commands (MAJCOM) may supplement this instruction. Send drafts of command supplements to Headquarters Air Force Services Agency, Directorate of Operations, Food, Lodging, and Club Division (HQ AFSVA/SVOH), 10100 Reunion Place, Suite 401, San Antonio Tx 78216-4138 for approval before publishing. Send copies of the final publication to HQ AFSVA/SVOH and HQ United States Air Force, Director of Services, Programs Division (HQ USAF/ILVP), 1770 Air Force Pentagon, Washington DC 20330-1770.

A bar (|) preceding a paragraph indicates changes from the previous edition.

(354FW) This publication applies to all personnel who sell, serve, purchase, and consume alcohol on Eielson Air Force Base. It also applies to the Air National Guard and Reserve units and their respective members when on Eielson Air Force Base.

SUMMARY OF REVISIONS

This IC authorizes installation commanders to increase the drinking age based on the local conditions.

(354FW) Clarification of wording in opening paragraph and paragraphs **1.1.2.2. (Added)** and **2.1.6.2.8. (Added)** Changed "billeting" to "lodging" in paragraph **2.1.3.** A bar (|) indicates revision form the previous edition.

(354FW) AFI 34-219, 9 September 1998, is supplemented as follows:

Chapter 1

ESSENTIAL PROGRAM ELEMENTS

1.1. General Requirements of the Alcohol Beverage Program.

1.1. (354FW) These restrictions apply to sale, use, and possession of alcoholic beverages on Eielson AFB.

1.1.1. This instruction covers all alcoholic beverages that personnel sell, serve, or consume at Air Force bases.

1.1.2. The minimum age for purchasing, serving, selling, possessing, or drinking alcoholic beverages on Air Force bases must be consistent with the law of the state, territory, possession, or foreign country (all referred to as "state" for purposes of this paragraph) in which the installation is located.

1.1.2.1. (Added-354FW) (354FW). Military or nonmilitary personnel, at least 21 years of age, may purchase, possess, and consume alcoholic beverages on Eielson AFB. Personnel who have alcoholic beverages in their room (21 years of age or older) have the responsibility to ensure it is not consumed by personnel (roommates or guests) under the legal drinking age of 21 years. Individuals who sell or dispense alcoholic beverages must be 21 years of age or older.

1.1.2.2. (Added-354FW) (354FW). Alaska state law recognizes the Dram Shop Theory of civil liability. Personnel who serve alcoholic beverages and allow an intoxicated person to further consume alcoholic beverages may be held liable for damage or harm brought about as a result. Squadron commanders, party monitors, and authorized servers of alcoholic beverages must make sure no alcoholic beverages are served to individuals who reach or appear to be reaching the point of intoxication.

1.1.3. Servers and sellers of alcoholic beverages must verify the purchaser's age with a photo identification card such as DD Form 2AF, a driver's license, or a passport. Proof of identification for the Army and Air Force Exchange Service (AAFES) is any active duty card, reserve card, or family member's card.

1.1.4. Adults may not provide alcoholic beverages to minors except in accordance with applicable state laws.

1.1.5. The Air Force may punish a military member who violates these restrictions under Article 92, Uniform Code of Military Justice.

1.1.6. Military personnel 18 years old or older may purchase, serve, sell, possess, and consume alcoholic beverages outside the United States, its territories, and possessions unless a higher drinking-age requirement exists in accordance with applicable status of forces or country-to-country agreements. A higher drinking age requirement may als be imposed based on the local situation as determined by the installation commander or the senior on-site unit commander when there is no installation commander. Coordination with any host commander is required.

1.1.7. As states enact new drinking-age laws, installation commanders must make corresponding changes in base drinking-age guidance.

1.1.8. The Air Force, consistent with mission needs, will cooperate with federal, state, and local officials; however, there is no legal obligation to submit to state or local control or regulation.

1.2. Program Exceptions.

1.2.1. MAJCOM, Director of Services (SV) may approve these exceptions to the standard guidance:

1.2.1.1. At Air Force installations located within approximately 50 miles from a neighboring state that has a lower drinking age, the minimum base drinking age may be lowered to match that of the neighboring state to reduce the likelihood that members will drive while intoxicated.

1.2.1.2. When an entire unit marks a unique or nonroutine military occasion on a military installation, the minimum drinking age for attendees at a particular unit gathering may be lowered.

1.2.2. MAJCOM/SVs may not delegate the approval authority for exceptions to the minimum drinking age.

1.2.2.1. MAJCOM/SVs may approve exceptions for any combination of beverages, including these common groupings:

- Beer only.
- Wine coolers and other low-alcoholic beverages with less than 7 percent alcoholic content by volume.
- Beer and wine only.
- Beer, wine, and spirits.

1.2.2.2. Each approval document must specifically state the alcoholic beverages that the exception covers.

1.2.2.3. MAJCOM/SV reevaluates the exceptions annually and sends an information copy of the continued exceptions to HQ AFSVA/SVOH.

1.2.2.4. MAJCOM/SV must cancel all exceptions that no longer meet the above criteria.

1.3. Dram Shop Liability. To protect the assets and interests of Nonappropriated Fund Instrumentalities (NAFI) and the Air Force, personnel must follow these procedures:

1.3.1. Flight chiefs write and publish operating instructions (OI) that prohibit personnel from serving alcoholic beverages to individuals who appear intoxicated or close to being intoxicated.

1.3.2. Alcoholic beverage servers must read the OIs.

1.3.2.1. Servers record their understanding of this policy on AF Form 971, Supervisor's Employee Brief, by signing underneath this statement: "I understand my responsibility under the dram shop theory of liability not to sell or serve alcoholic beverages to persons who appear to be nearing intoxication and not in complete control of their faculties." The statement is placed in the comments section of AF Form 971 by the servers' supervisors.

1.3.2.2. The AAFES commander prescribes the statement to be signed by all AAFES employees.

1.3.3. Activity managers set up proper safeguards or controls to protect the welfare of an intoxicated patron.

1.3.4. Activity managers promptly report any incident that may result in a potential claim to the Services commander or director (refer to AFI 34-408, Property and Casualty Program). AAFES activity managers will report to the AAFES general manager on the base.

1.3.4. (354FW) Managers of Services Squadron facilities must submit a report of any patron's unfavorable drinking-related incident through the Services Squadron commander to patron's unit commander or senior employee supervisor. Activity supervisors will annotate all drinking-related incidents in the manager's log book, including name, organization, and club card number of persons involved. Individuals who have patronage privileges suspended by the Services Squadron commander as a result of drinking-related misconduct, may have their privileges reinstated by the Services Squadron commander after a personal conference with the individual(s) involved, sponsor (if appropriate), and the unit commander.

1.4. Drunk and Drugged Driving Program. This program implements DoDD 1010.7, Drunk and Drugged Driving by DoD Personnel, 10 August 1983. The Services commander or director and the AAFES manager, under the direct guidance of the installation commander, must be familiar with the spirit and intent of DoDD 1010.7 and all Air Force initiatives to eliminate drunk or drugged driving incidents involving patrons of base Services and AAFES facilities.

1.4.1. The installation commander ensures that the base holds annual training programs to familiarize beverage supervisors and servers with Air Force drinking policies.

1.4.2. The training must cover:

1.4.2.1. Principles of dram shop liability.

1.4.2.2. Methods for identifying intoxicated patrons.

1.4.2.3. Recommended procedures to prevent individuals from driving under the influence of alcohol.

1.4.3. Supervisors document this training in each employee's work folder.

1.4.4. AAFES conducts the training for its employees.

1.4.5. Flight chiefs must develop OIs for activities serving alcoholic beverages. The OIs must emphasize:

1.4.5.1. The importance of curtailing alcohol- or drug-influenced incidents.

1.4.5.2. The principles of dram shop liability.

1.4.5.3. The responsibilities of employees in carrying out the drunk and drugged driving program.

1.4.5.4. The importance of encouraging patrons to use a "designated driver" or "buddy" system.

1.4.5.5. The provisions of the alcohol deglamorization program.

1.5. Alcohol Deglamorization Program. Installation commanders, sales activity managers, and activity managers implement the Air Force's Alcohol Deglamorization Program at the base level.

1.5.1. To oversee the base program, installation commanders follow these procedures:

1.5.1.1. Use base media (newspapers, bulletins, etc.) to deglamorize alcohol, call for responsible drinking, and show that alcoholism is a treatable condition.

1.5.1.2. Make sure that activities serving alcoholic beverages don't promote excessive drinking.

1.5.1.3. Make sure that activities serving alcoholic beverages also offer nonalcoholic beverages.

1.5.1.4. Approve the hours during which alcoholic beverages by the drink are sold on the installation.

1.5.1.5. Coordinate the hours of operation for package beverage sales with AAFES to provide reasonable service, meet local conditions, and recognize the needs of military personnel.

1.5.1.6. Emphasize that Air Force members should not drink alcoholic beverages before or during their working hours but may drink prudently as part of a meal.

1.5.1.7. Make sure sale or redemption of chit books are not used for the purchase of alcoholic beverages.

1.5.1.8. Make sure there is no award of coupons for reduced prices on alcoholic beverages.

1.5.2. The following guidance applies at all Air Force installations, but the installation commander can provide waivers on a case-by-case basis. NOTE: The MAJCOM/SV must approve any command-wide exceptions to program procedures.

1.5.2.1. Sales activity managers observe these procedures when offering alcoholic beverages, by the drink, at reduced prices:

1.5.2.1.1. Keep designated periods to 10 hours or fewer per week and no more than 2 hours per day.

1.5.2.1.2. Make snacks or food available.

1.5.2.1.3. Reduce prices no more than 50 percent except for beverages offered as complimentary with a meal.

1.5.2.1.4. Don’t offer coupons for reduced prices on alcoholic beverages.

1.5.2.1.5. Don't serve two-for-one drinks.

1.5.2.1.6. Don't use "last call" or other countdown events designed to promote last-minute sales.

1.5.2.1.7. Don't increase the alcoholic content of a drink beyond the standard bar recipe without increasing the price.

1.5.2.2. Activity managers observe these procedures when operating bars:

1.5.2.2.1. Don't operate pro rata bars that require nondrinkers to share the cost of alcoholic beverages unless a pay-as-you-go bar isn't practical or all the members of a group volunteer to share the cost.

1.5.2.2.2. Don't include the cost of alcoholic beverages in a package price for a meal, party, or other function (includes dining-in or out) without offering a comparable nonalcoholic option.

1.5.2.2.3. Don't use terms that glamorize alcoholic beverages or their consumption ("sick calls," "attitude adjustment hours," and so on).

1.5.2.2.4. Use the term "social hour" in all written advertisements to suggest a wider range of programs.

1.5.2.2.5. Reduce prices for nonalcoholic beverages when reducing prices for alcoholic beverages.

1.5.2.2.6. Make a complimentary alcoholic beverage part of a meal only in appropriate cases (for example, with birthday or anniversary meal programs). In all cases, make nonalcoholic beverages available as an optional complimentary drink.

1.5.2.2.7. Prohibit drinking contests.

1.5.2.2.8. Complimentary nonalcoholic beverages may be offered in association with a designated driver program.

1.6. Purchasing Alcoholic Beverages for Resale. Air Force NAFIs must purchase alcoholic beverages from the most competitive source possible, with these restrictions:

1.6.1. Installations in the continental United States (CONUS), Alaska, and Hawaii must purchase wine and malt beverages for resale from the most competitive in-state source. An in-state source must deliver the order.

1.6.2. Installations in Alaska and Hawaii must purchase distilled spirits for resale from the most competitive in-state source. An in-state source must deliver the order.

1.6.3. Installations in the CONUS must purchase distilled spirits from the most competitive source. There is no in-state purchasing or delivery requirement.

1.7. Taxation. NAFIs that buy and sell alcoholic beverages must observe these federal tax stamp regulations:

1.7.1. In the United States, a NAFI can't transfer alcoholic beverages to another NAFI for reimbursement unless the transferring NAFI has a Federal Liquor Wholesaler's Occupation Tax Stamp issued by the Bureau of Alcohol, Tobacco, and Firearms (BATF).

1.7.2. In the United States, each NAFI (Morale, Welfare, and Recreation Fund (MWRF), lodging fund, AAFES, and so on) that sells retail alcoholic beverages must have the proper federal retail occupation tax stamp (either a liquor or a beer stamp).

1.7.3. Each NAFI that sells alcoholic beverages needs only one stamp, regardless of how many annexes or retail outlets that NAFI operates on the installation.

1.7.4. A NAFI operating retail outlets offbase (for instance, at an off-base recreation area) must have a separate stamp for each off-base outlet.

1.7.5. A NAFI that holds a valid federal wholesaler's occupation tax stamp doesn't need a federal retail occupation tax stamp.

1.7.6. A NAFI that transfers alcoholic beverages to other NAFIs on a reimbursable basis must post a sign that can be seen from outside the building that reads "Wholesale Liquor Dealer."

1.7.7. A NAFI must provide BATF officers with purchase orders, invoices, stock record cards, inventories, and other related documents on request.

1.7.8. Obtain information and forms to apply for wholesale or retail alcoholic beverage permits and tax stamps from the Department of the Treasury, Internal Revenue Service, Bureau of Alcohol, Tobacco, and Firearms, Washington DC 20226-5000.

1.7.9. NAFIs are exempt from all non-federal regulations and direct state and local taxes.

1.7.9.1. Immediately request assistance from the HQ AFSVA Office of Legal Counsel (HQ AFSVA/SVL), 10100 Reunion Place, Suite 503, San Antonio TX 78216-4138 to resolve any attempt by a state or local government to tax or regulate a non-AAFES NAFI's alcohol purchases or sales.

1.7.9.2. Request the assistance of the Commander, AAFES, ATTN: General Counsel, PO Box 660202, Dallas TX 75266-0202 to resolve any attempt to tax or regulate an AAFES activity.

1.8. Transporting Alcoholic Beverages in USAF Aircraft. The guidance for transporting alcoholic beverages in USAF aircraft is in AFIs 24-401, Customs--Europe, 24-402, Customs--Pacific, 24-403, Customs--Southern, and 24-404, Customs--Domestic.

1.9. Breath Analyzers. Don't use coin-operated or any other type of breath analyzers in Services activities.

Chapter 2

SERVING OR SELLING ALCOHOLIC BEVERAGES FOR ON-PREMISES CONSUMPTION

2.1. Governing Criteria. The installation commander will determine which MWRF-supported recreation activities may sell alcoholic beverages to authorized adults by the drink or in single-serving containers.

2.1. (354FW) The sale and dispensing of alcoholic beverages is limited to the facilities indicated below for on-premise consumption.

2.1.1. The Air Force prohibits alcoholic beverages in any youth program building and outdoor area or at any function sponsored by or for the youth program (Refer to AFI 34-249, Youth Programs).

2.1.1. (354FW) Yukon and Aurora Clubs (Bldgs 2225 and 5223).

2.1.2. Managers may sell alcoholic beverages for on-premises consumption in all lodging facilities. If the lodging manager doesn't provide this service, a MWRF-supported activity may do so.

2.1.2. (354FW) Arctic Nite Bowling Center.

2.1.2.1. Lodging managers may not operate bars, but may sell these kinds of packaged alcohol:

- Distilled spirit miniatures (or, if not available, 200 milliliter sizes).
- Wine coolers and other premixed, commercially packaged alcoholic beverages with less than 7 percent alcoholic content by volume (not to exceed 375 milliliters).
- Wine (no larger than 1 liter containers).
- Beer (by the bottle or can).

2.1.2.2. AAFES food facilities may sell beer, wine, and premixed commercial drinks (if less than 7 percent alcoholic content by volume) for on-premise consumption. **EXCEPTION:** AAFES-operated name-brand fast-food outlets normally may not sell alcoholic beverages (see paragraph 2.1.3).

2.1.3. The installation commander may allow:

2.1.3. (354FW) Lodging Office (Bldg 2270) for consumption in lodging quarters.

2.1.3.1. AAFES-operated name-brand fast-food outlets to sell beer, wine coolers, and premixed commercially packaged alcoholic beverages with less than 7 percent alcohol content by volume if the chain offers the same products in the local community.

2.1.3.2. AAFES-operated base restaurants to sell wine by the glass with meals.

2.1.4. An AAFES facility that isn't authorized to sell alcoholic beverages may request a waiver from HQ USAF/ILV, 1770 Air Force Pentagon, Washington DC 20330-1770. The request must explain how permitting the facility to sell drinks would be beneficial to both consumers and the Air Force.

2.1.5. Base restaurants and other facilities supported by a civilian welfare NAFI may sell these kinds of drinks for on-premises consumption:

- Beer (by single serving size).
- Wine coolers (by single serving size).

- Premixed, commercially packaged alcoholic beverages with less than 7 percent alcoholic content by volume.
- Wine by the glass with meals, when approved by the installation commander.

2.1.6. Alcoholic beverages may be served in other base and base-related facilities or areas as approved by the installation commander. The base supplement to this instruction must specify these authorized areas (for example, at government quarters or other base or off-base areas where personnel usually bring their own refreshments).

2.1.6.1. (Added-354FW) The sale and dispensing of malt beverages and wine are limited to the Services Squadron facilities indicated for on-premise consumption only:

2.1.6.1.1. (Added-354FW) Birch Lake Lodge (military recreation area).

2.1.6.1.2. (Added-354FW) Ravenwood Ski Lodge.

2.1.6.1.3. (Added-354FW) Skeet & Trap Range (clubhouse only).

2.1.6.1.4. (Added-354FW) Services concession booths operating in support of special events.

2.1.6.1.5. (Added-354FW) Base athletic fields not involved in youth sports functions.

2.1.6.2. (Added-354FW) Consumption of alcoholic beverages is authorized at the following facilities and locations for on-premise consumption only:

2.1.6.2.1. (Added-354FW) Private family and bachelor quarters

2.1.6.2.2. (Added-354FW) Par Course picnic area

2.1.6.2.3. (Added-354FW) Ravenwood Ski Lodge picnic area

2.1.6.2.4. (Added-354FW) Chena River Park

2.1.6.2.5. (Added-354FW) Birch Lake military recreation area

2.1.6.2.6. (Added-354FW) Bear Lake Pavilion

2.1.6.2.7. (Added-354FW) Grayling Lake Pavilion

2.1.6.2.8. (Added-354FW) The 18 FS, 353 CTS, 355 FS and other areas as approved by the installation commander.

2.1.6.2.9. (Added-354FW) (354FW). Others as approved by the Support Group commander on a one-time basis. Units, groups, or organizations which desire to use these areas for social events must submit a letter. Forward requests to 354 SVS/SVR to arrive no later than 10 days before the event.

SAMPLE USE OF ALCOHOLIC BEVERAGE MEMORANDUM

MEMORANDUM FOR354 SVS/SVR

354 SPTG/CC

IN TURN

FROM:

SUBJECT: Use of Alcoholic Beverages

1. Request approval for use of alcoholic beverages in Building _____ during the hours of _____ - _____ (time) on _____ (date).

2. This request is in support of a sponsored social event as described below and according to AFI 34-219 as supplemented.

a. Type of party: _____

b. Responsible party monitors: _____

c. Alcoholic beverage(s) to be served: _____

d. Number of personnel: _____

3. Party monitors understand their responsibilities in regard to health and safety of the personnel present and their (party monitors) potential liability under the Dram Shop Theory.

I understand my responsibility under the Dram Shop Theory not to serve alcoholic beverages to persons who appear to be intoxicated and not in control of their faculties. I also understand my responsibilities to ensure those persons under 21 years of age do not possess or consume alcoholic beverages.

_____ _____

(Printed Name) (Signature

_____ _____

(Printed Name) (Signature)

_____

(Signature and Rank of Unit or Section Commander)

2.1.6.2.10. (Added-354FW) Alcoholic beverages will not be sold or dispensed in the Bowling Center during youth leagues or when any youth-sponsored bowling event is in progress.

2.1.7. Air Force medical and religious facilities may dispense alcoholic beverages in accomplishing their mission.

2.1.8. Alcoholic beverages may be served and consumed in on-base areas not designated for this purpose when approved by the installation commander and are sold and dispensed by an authorized Services or AAFES activity.

2.2. Vending Machines. Don't use vending machines to sell alcoholic beverages in the United States, its territories, or possessions.

2.2.1. Outside the United States, its territories and possessions, installation commanders may approve vending machine sales of beer in transient quarters, dormitories, and dining halls for on-premise consumption.

2.2.2. AAFES operates the overseas vending machines. A base supplement must set up these minimum controls for facilities with vending machines:

2.2.2.1. Hours of operation that comply with mission requirements.

2.2.2.2. Appropriate personnel who closely supervise machines during operating hours.

2.2.2.3. Only authorized persons may use the machines.

2.2.2.4. Supervisors lock machines during nonoperating hours.

2.3. Private Organizations. Private organizations can't sell or serve alcoholic beverages on Air Force bases.

2.4. Air Force Sponsored Aircraft. With MAJCOM/SV approval, individuals may consume alcoholic beverages on Air Force-sponsored aircraft. Create a special NAFI to manage the funds in accordance with AFI 34-401, Use of Nonappropriated Funds (NAFs).

2.5. Unauthorized Beverages. Activity managers must not allow individuals to bring personal supplies of alcoholic beverages into buildings or on the grounds where activities sell or serve alcohol.

Chapter 3

SELLING ALCOHOLIC BEVERAGES FOR OFF-PREMISE CONSUMPTION

3.1. AAFES. AAFES is designated as the single manager of packaged alcoholic beverage (Class Six) stores and the prime wholesaler of alcoholic beverages. The Air Force packaged beverage policy appears in AFR 147-14 (to be AFJI 34-210), Army and Air Force Exchange Service (AAFES) Operating Policies.

3.2. Base Services Activities. Services and other Air Force activities may not compete with AAFES to sell packaged alcoholic beverages. When approved by the installation commander, Services activities may sell beer, wine coolers, and other commercially packaged alcoholic beverages with less than 7 percent alcoholic content by volume for off-premises consumption, but must restrict these sales to time periods when AAFES-operated retail outlets are closed. Services may not offer alcohol for lower prices than AAFES charges for the same item.

3.2.1. Packaged beer or wine sales that Services offer as part of a party contract or takeout food and beverage operation are exempt from this restriction. Takeout operations normally may only sell 6-pack containers and similarly packaged products. Party contracts include keg beer.

3.2.1. (354FW) Alcoholic beverages will only be sold and served to authorized personnel. Guests of club members are authorized to be served and to purchase alcoholic beverages if they are 21 years of age or older. Sales of alcoholic beverages are restricted to on-premise consumption except sales at the Class Six and AAFES retail outlets which conduct sales for off-premise consumption. Club may sell packaged beer and wine coolers for off-premise consumption when AAFES-operated retail outlets are closed.

3.2.2. Clubs may sell bottled wines and champagnes listed on the dining room wine list for off-premise consumption under these conditions:

3.2.2.1. Clubs may not set up rooms separate from the dining room to display or sell for off-premise consumption.

3.2.2.2. Clubs ensure that dining room list prices comply with the pricing policy specified in paragraph 3.6.

3.2.3. At installations where the club or Class Six outlets sell exclusive of state tax, managers must ensure that sales are made only to patrons authorized to use the Class Six store (Refer to paragraph 3.4 for specific instructions on authorized patronage and the attachment for the definition of Class Six). Managers must inform patrons of the maximum quantities that an individual may legally transport into or through the state, district, territory, or country where the installation-of-purchase is located.

3.3. Establishing Class Six Outlets.

3.3.1. In the United States, installations may operate Class Six outlets when approved by the Secretary of the Air Force. AFR 147-14 (to be AFJI 34-210) contains procedures for establishing a Class Six store.

3.3.2. In overseas areas, installations may operate Class Six outlets where there is no contradictory status-of-forces or other country-to-country or local governmental agreement.

3.3.2.1. MAJCOMs or Field Operating Agencies (FOA) may approve such operations if requested by AAFES. MAJCOMs and FOAs must send an information copy of each approval to HQ AFSVA/SVOH at least 30 days prior to approving a new Class Six store.

3.4. Authorized Patronage.

3.4.1. AFR 147-14 (to be AFJI 34-210) contains AAFES Class Six patronage restrictions and identification procedures.

3.4.2. Authorized patronage in overseas areas must comply with the provisions of the status-of-forces or other country-to-country agreements in each country.

3.5. Controlling Sales. Authorized patrons may not sell, exchange, or otherwise divert packaged alcoholic beverages to unauthorized personnel or for purposes that violate federal, state, or local laws, or status-of-forces or other country-to-country agreements.

3.6. Pricing. Services activity managers must make sure that their prices for packaged alcoholic beverages that contain less than 7 percent alcohol by volume are substantially uniform with AAFES, but at no lower price, and other military service outlets in the same geographic area.

3.7. Wholesale Sales. AAFES is the prime wholesaler of alcoholic beverages on Air Force installations.

3.7.1. AAFES provides all requested alcoholic beverage products to authorized Services and NAF-supported base activities.

3.7.2. If AAFES has stock shortages, activities selling alcoholic beverages by the drink have first priority.

3.7.3. AAFES sets wholesale prices based on the "landed cost" that a Class Six store pays for alcohol purchases (the purchase order price that the store pays, adjusted for vendor and invoice discounts, plus costs incurred to bring goods to the point of sale). AAFES assesses no additional transportation, warehousing distribution, or handling charges.

3.7.3.1. AAFES notifies HQ AFSVA/SVOH if exceptional conditions (national disasters, transportation strikes, etc.) arise that affect wholesale prices.

3.7.4. AAFES may offer wholesale prices on Class Six merchandise to organizations and activities that aren't Services or NAF-supported in accordance with AFR 147-14 (to be AFJI 34-210).

3.7.5. Services and other NAF-supported activities may purchase alcoholic beverages from sources other than AAFES. Compliance with paragraph 1.6 is mandatory.

3.8. Labeling Packaged Alcoholic Beverages.

3.8.1. Public Law 100-690, Title VIII, Alcoholic Beverages Labeling Act of 1988, 18 November 1988, requires that all packaged containers of alcoholic beverages for resale on military installations bear this statement: GOVERNMENT WARNING: (1) According to the Surgeon General, women should not drink alcoholic beverages during pregnancy because of the risk of birth defects. (2) Consumption of alcoholic beverages impairs your ability to drive a car or operate machinery and may cause health problems.

3.8.2. This requirement also applies to foreign packaged beverages that Services activities serve or sell overseas.

3.8.3. The selling activity's manager must label all beverages that the producer doesn't label. Follow these labeling requirements:

3.8.3.1. PL 100-690 defines alcoholic beverages as any beverage in liquid form that contains not less than one-half of one percent (0.5 percent) of alcohol by volume for human consumption.

3.8.3.2. Design all labels to make the health warning statement readily legible under ordinary conditions. The statement must be on a contrasting background.

3.8.3.3. Label all containers of 237 milliliters (8 ounces) or less: 1 millimeter (0.04 inches) sized lettering.

3.8.3.4. Label all containers of more than 237 milliliters (8 ounces): 2 millimeters (0.08 inches) sized lettering.

3.8.3.5. Affix labels on the container so they can't be removed without thorough application of water or other solvents.

Chapter 4

RESPONSIBILITIES

4.1. HQ USAF/ILV issues policy on controlling, selling, procuring, and using alcoholic beverages.

4.2. The AFSVA Commander provides procedural guidance for controlling, selling, procuring, and using alcoholic beverages.

4.3. MAJCOM commanders, through their Services staffs, enforce this AFI.

4.4. The AAFES commander oversees all Class Six packaged beverage operations on Air Force bases in accordance with AFR 147-14 (to be AFJI 34-210).

4.5. Installation commanders oversee installation alcoholic beverage programs and enforce this AFI. EXCEPTION: The AAFES commander oversees alcohol distribution and sales for all AAFES Class Six operations.

4.6. The Vice President of the AAFES region and the appropriate MAJCOM/SV settle any disputes that the installation commander and local responsible AAFES official can't resolve. Send information copies of the dispute to Headquarters Army and Air Force Exchange Service, Strategic Planning and Communications Directorate (HQ AAFES/PL), and HQ AFSVA/SVOH.

WILLIAM P. HALLIN, Lieuenant General, USAF
DCS/Installation & Logistics

Attachment 1

GLOSSARY OF REFERENCES, ACRONYMS, ABBREVIATIONS, AND TERMS

References

Public Law 100-690, Title VIII, Alcoholic Beverages Labeling Act of 1988, 18 November 1988

DoDD 1010.7, Drunk and Drugged Driving by DoD Personnel, 10 August 1983

AFPD 34-2, Air Force Community Services Programs

AFI 24-401, Customs--Europe

AFI 24-402, Customs--Pacific

AFI 24-403, Customs--Southern

AFI 24-404, Customs--Domestic

AFI 34-401, Use of Nonappropriated Funds (NAFs)

AFI 34-408, Property and Casualty Program

AFI 34-249, Youth Programs

AFR 147-14 (to be AFJI 34-210), Army and Air Force Exchange Service (AAFES) Operating Policies

Abbreviations and Acronyms

AF—Air Force

AFR—Air Force Regulation

AFPD—Air Force Policy Directive

AFI—Air Force Instruction

AFIJ—Air Force Joint Instruction

AAFES—Army and Air Force Exchange Service

BATF—Bureau of Alcohol, Tobacco, and Firearms

CONUS—Continental United States

DoD—Department of Defense

DoDD—Department of Defense Directive

FOA—Field Operating Agency

HQ AAFES/PL—Headquarters Army and Air Force Exchange Service, Strategic Planning and Communications Directorate

HQ AFSVA—Headquarters Air Force Services Agency

HQ AFSVA/SVOH—Headquarters Air Force Services Agency, Directorate of Operations, Food, Lodging and Club Division

HQ USAF/ILV—Headquarters United States Air Force, Director of Services

HQ USAF/ILVP—Headquarters United States Air Force, Directorate of Services, Programs Division

MAJCOM—Major Air Command

MWRF—Morale, Welfare, and Recreation Fund

NAF—Nonappropriated fund

NAFI—Nonappropriated fund instrumentality

OI—Operating Instruction

OPR—Office of Primary Responsibility

PL—Public Law

RCS—Report Control Symbol

SV—Services

TLF—Temporary Lodging Facility

USAF—United States Air Force

Terms

Adult—A person 21 years old or over. Personnel 18 to 21 years old are adults if so defined by the law of the state, territory, possession, or foreign country where the installation is located. If a state, territory, possession, or foreign country prohibits alcoholic beverages or has no prescribed drinking age, an adult is a person 18 years old or older.

Alcoholic Beverages—Potable beverages containing any amount of ethyl alcohol.

Bases in the United States—Bases located in the 50 states and the District of Columbia.

Class Six Store or Annex—The building or space within a building that serves as the main or supplementary point-of-sale for packaged (off-the-shelf) alcoholic beverages for off-premise consumption.

Container—The innermost sealed container, regardless of the packaging material, in which the bottler places an alcoholic beverage for commercial sale.

Distilled spirits—Alcoholic beverages produced by distilling.

Dram shop theory—A theory of legal liability under which servers of alcoholic beverages (facility owner, operator, or employee) can be held liable for damages when they continue to serve alcoholic beverages to a customer who reaches or appears to be nearing the point of intoxication and the customer then brings harm to property, the customer, or others.

Low alcohol, nonmalt beverage—A premixed, commercially packaged alcoholic beverage with less than 7 percent alcohol content by volume.

Malt beverage—Beer, ale, and malt liquor derived from yeast-induced fermentation of malted cereal grain to which hops have been added.

Minor—An individual who doesn't meet the minimum age requirements for lawfully consuming alcohol.

Services activity—Any activity operated by the base Services Squadron.

Name-brand fast-food outlet—A fast-food outlet easily identifiable as a part of an off-base fast-food chain.

Nonalcoholic beverage—A beverage containing no alcohol.

Wine.—A beverage made from the fermented juice of grapes or from other agricultural products containing not less than 7 percent, and not more than 24 percent, alcohol by volume.

Attachment 2

IC 98-1 TO AFI 34-219, ALCOHOLIC BEVERAGE PROGRAM

SUMMARY OF REVISIONS

9 SEPTEMBER 1998

This interim change (IC) authorizes installation commanders to increase the drinking age based on the local conditions.

1.1.6. Military personnel 18 years old or older may purchase, serve, sell, possess, and consume alcoholic beverages outside the United States, its territories, and possessions unless a higher drinking age requirement exists in accordance with applicable status-of-forces or other country-to-country agreements. A higher drinking age requirement may also be imposed based on the local situation as determined by the installation commander or the senior on-site unit commander when there is no installation commander. Coordination with any host commander is required.